

COMMISSION IMPLEMENTING REGULATION (EU) No 323/2014

CELEX id	32014R0323
Document type	Regulation
Policy domain	Agri-foodstuffs
Year	2014
Legal actor type	Public agency
Applicable role	Other
Language	en

COMMISSION IMPLEMENTING REGULATION (EU) No 323/2014

of 28 March 2014

amending Annexes I and II to Regulation (EC) No 669/2009 implementing Regulation (EC) No 882/2004 of the European Parliament and of the Council as regards the increased level of official controls on imports of certain feed and food of non-animal origin

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EC) No 882/2004 of the European Parliament and of the Council of 29 April 2004 on official controls performed to ensure the verification of compliance with feed and food law, animal health and animal welfare rules (1), and in particular Article 15(5) thereof,

Whereas:

(1)

Commission Regulation (EC) No 669/2009 (2) lays down rules concerning the increased level of official controls to be carried out on imports of feed and food of non-animal origin listed in Annex I thereto ('the list'), at the points of entry into the territories referred to in Annex I to Regulation (EC) No 882/2004.

(2)

Article 2 of Regulation (EC) No 669/2009 provides that the list is to be reviewed on a regular basis, and at least quarterly, taking into account at least the sources of information referred to in that Article.

(3)

The occurrence and relevance of food incidents notified through the Rapid Alert System for Food and Feed, the findings of missions to third countries carried out by the Food and Veterinary Office, as well as the quarterly reports on consignments of feed and food of non-animal origin submitted by Member States to the Commission in accordance with Article 15 of Regulation (EC) No 669/2009 indicate that the list should be amended.

(4)

In particular, for consignments of betel leaves originating from India and Thailand, enzymes originating from India, groundnuts and derived products originating from Sudan and vine leaves originating from Turkey the relevant sources of information indicate the emergence of new risks warranting the introduction of an increased level of official controls. Entries concerning those consignments should therefore be included in the list.

(5)

In addition, the list should be amended by deleting the entries for commodities for which the available information indicates an overall satisfactory degree of compliance with the relevant safety requirements provided for in Union legislation and for which an increased level of official controls is therefore no longer justified. The entry in the list concerning dried noodles from China should therefore be deleted.

(6)

The Commission was also advised by the Member States of the need to specify that the entries for imports of herbs from Morocco, Thailand and Viet Nam, okra from Viet Nam and peppers from Thailand and Viet Nam also cover chilled commodities. In the interests of clarity of Union legislation, it is also necessary to make a precision in the list regarding the entries for imports of oranges and strawberries from Egypt and peas and beans from Kenya.

(7)

Moreover, modifications are needed in Annex II to Regulation (EC) No 669/2009, in particular in order to reflect the provisions on onward transportation set out in Article 8 of that Regulation in the common entry document. Further technical modifications are also needed to the Notes for Guidance for the common entry document.

(8)

In order to ensure consistency and clarity, it is appropriate to replace Annexes I and II to Regulation (EC) No 669/2009.

(9)

Regulation (EC) No 669/2009 should therefore be amended accordingly.

(10)

The measures provided for in this Regulation are in accordance with the opinion of the Standing Committee on the Food Chain and Animal Health,

HAS ADOPTED THIS REGULATION:

Article 1

Annexes I and II to Regulation (EC) No 669/2009 are replaced by the text set out in the Annex to this Regulation.

Article 2

This Regulation shall enter into force on the third day following that of its publication in the Official Journal of the European Union.

It shall apply from 1 April 2014.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 28 March 2014.